

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
Darnell Wilson, :: Index Number:
: Date Purchased:
: Date Filed:

Plaintiffs : SUMMONS

-against- :

City of New York, New York City Police Department, :
Police Officer Alejandro Azcona of the 48 Precinct, :
Detective Shaun Odonnell of the 48 Precinct and Sergeant :
Oliver Castillo of the 48 Precinct and New York City :
Police Officers John Doe, :: Plaintiff's residence is:
: 914 Simpson Street
: Bronx, NY 10459

Defendants

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: August 24, 2020
Bronx, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue, Suite 1H
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Alejandro Azcona of the 48 Precinct

Detective Shaun Odonnell of the 48 Precinct

Sergeant Oliver Castillo of the 48 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X	:	
Darnell Wilson,	:	
	:	
Plaintiffs	:	VERIFIED COMPLAINT
	:	
-against-	:	
	:	
City of New York, New York City Police Department,	:	
Police Officer Alejandro Azcona of the 48 Precinct,	:	
Detective Shaun Odonnell of the 48 Precinct and Sergeant	:	
Oliver Castillo of the 48 Precinct and New York City	:	
Police Officers John Doe,	:	
	:	
	:	
Defendants	:	
-----X	:	

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Darnell Wilson, (hereinafter referred to as "WILSON") resides in Bronx, State of New York.
2. That at all times hereinafter mentioned, Police Officer Alejandro Azcona of the 48 Precinct (hereinafter referred to as "AZCONA") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, Detective Shaun Odonnell of the 48 Precinct (hereinafter referred to as "ODONNELL") was employed by the New York City Police Department.

4. That at all times hereinafter mentioned, Sergeant Oliver Castillo of the 48 Precinct (hereinafter referred to as "CASTILLO") was employed by the New York City Police Department.

5. That at all times hereinafter mentioned, the New York City Police Officer Jane Doe, involved in the arrest of Plaintiff (hereinafter referred to as "DOE") were employed by the New York City Police Department.

6. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

7. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

8. On or before about April 7, 2020 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

9. That on or about May 22, 2020 a hearing required by Municipal Law 50-H was held. At said hearing Plaintiff testified and set forth the facts underlying Plaintiff's claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

10. That on or about October 3, 2018 at approximately 2:00PM inside of 1010 East 178 Street, Bronx, NY Plaintiff was walking up the stairs towards a friend's apartment when he was

tackled from behind and thrown down several stairs by AZCONA, O'DONNELL, CASTILLO and DOES.

11. That after Plaintiff was thrown down several stairs and lying face down, one of the police officers dug their knee into Plaintiff's back while other police officers pulled Plaintiff's arms behind his back towards his head.

12. That as a result of the actions by AZCONA, O'DONNELL, CASTILLO and DOES, Plaintiff experienced substantial pain and injury to his left shoulder, right wrist, back, head and face.

13. That Plaintiff's wrists were handcuffed and he was arrested.

14. That at no time had Plaintiff acted in a threatening or violent manner with police that would have justified assaulting Plaintiff.

15. That at no time prior to his arrest had Plaintiff been engaged in any criminal, or unlawful behavior.

16. That at no time was Plaintiff involved in the shooting of anyone.

17. That after Plaintiff was arrested he was transported to the 48 precinct wherein he was placed into a cell with numerous other males.

18. That after spending several hours in the 48 precinct, Plaintiff was transported to a local Bronx hospital wherein he received treatment for numerous injuries and substantial pain caused by AZCONA, O'DONNELL, CASTILLO and DOES.

19. That while at the local Bronx hospital, Plaintiff received treatment to his left shoulder, right wrist, back, head and face.

20. That while Plaintiff received medical attention at the local Bronx hospital, he was handcuffed to his hospital bed by his wrist and ankle.

21. That in between October 3, 2018 and November 17, 2018, Plaintiff was arraigned at the local Bronx hospital wherein he was charged with Attempted Murder and Criminal Possession of a Weapon.

22. That at the time of his hospital arraignment, bail was set and Plaintiff remained in the custody of the Department of the New York City Police Department.

23. That on or about November 17, 2018, Plaintiff was transferred from the local Bronx hospital to a local New York County hospital.

24. That while Plaintiff was in the local New York County hospital he continued to receive medical attention for his injuries.

25. That while Plaintiff was in the local New York County hospital, he was remanded to the custody of the New York City Department of Corrections in that there was a corrections officer in front of hospital room door and plaintiff was handcuffed by his wrist and ankle.

26. That on or about December 20, 2018, Plaintiff was transported from the local New York County hospital to a Department of Corrections Juvenile Center.

27. That Plaintiff remained in the custody of the New York City Department of Corrections until July 11, 2019 when Plaintiff posted bail.

28. That on and between January 1, 2019 and the date of the dismissal, Plaintiff made numerous court appearances until the case was dismissed upon application of the Bronx County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

29. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 28, as if more fully stated herein at length.

30. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

31. That as a result of the actions of Defendants, Plaintiff was seriously injured due to the intentional manner in which Defendants, their agents, servants, employees and/or licensees treated Plaintiff and he was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

32. That as a result of the Defendants' actions, Plaintiff spent several months confined to a hospital bed.

33. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

34. That as a result of the actions by Defendants Plaintiff was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

35. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

36. That as a result of the Defendants' actions, Plaintiff missed several months of school.

37. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

38. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 37, as if more fully stated herein at length.

39. The intentional assault, battery, verbal abuse, false arrest, false imprisonment and maliciously prosecuted by Defendants violated the rights of Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

40. Defendants having no lawful authority to arrest Plaintiff did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

41. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 40, as if more fully stated herein at length.

42. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

43. That Plaintiff was systemically targeted and assaulted due to his race in violation violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York

State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

44. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 43, as if more fully stated herein at length.

45. Plaintiff was assaulted, battered, verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

46. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

47. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 46, as if more fully stated herein at length.

48. At all times pertinent hereto, AZCONA, ODONNELL, CASTILLO and DOES was acting within the scope of their employment as officers of the New York City Police Department and City of New York.

49. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that AZCONA, ODONNELL, CASTILLO and DOES committed within the scope of their employment.

AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST DEFENDANTS

50. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 49, as if more fully stated herein at length.

51. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers, including AZCONA, ODONNELL, CASTILLO and DOES, constitutes a willful and wanton indifference and deliberate disregard for human safety, bodily concern, life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS

52. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 51, as if more fully stated herein at length.

53. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

54. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

55. The City of New York and New York City Police Department knew that there was a substantiated abuse of authority, Civilian Complaint Review Board complaint, from an incident that occurred on November 22, 2008 against O'DONNELL and they continued to employ him.

56. The City of New York and New York City Police Department knew that there was a substantiated abuse of authority, Civilian Complaint Review Board complaint, from an incident that occurred on June 7, 2019 against CASTILLO and they continued to employ him.

57. The City of New York and New York City Police Department knew that there was a lawsuit brought against CASTILLO under index number 13CV01145, Hill v. City of New York et. al. that the city resolved with a monetary settlement and yet they continued to employ him.

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

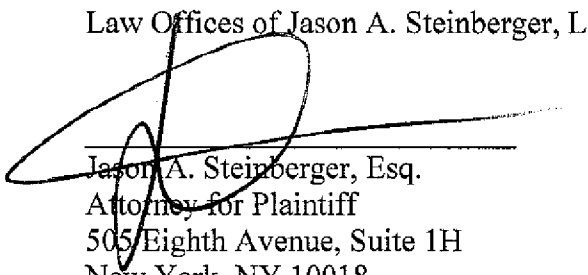
On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC



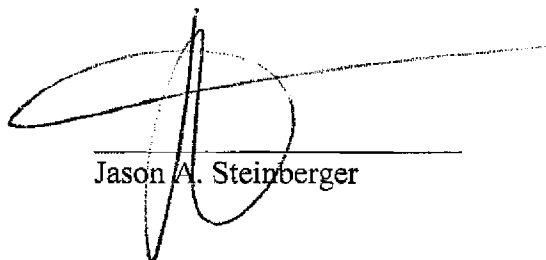
Jason A. Steinberger, Esq.
Attorney for Plaintiff
505 Eighth Avenue, Suite 1H
New York, NY 10018
(646) 256-1007

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STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: August 24, 2020



Jason A. Steinberger